

CHAPTER 25

An Act to extend, for defence purposes and purposes relating to world peace and security, the Supplies and Services (Transitional Powers) Act, 1945, and Defence Regulations and other instruments having effect by virtue of that Act; and to make provision for the stopping up or diversion of highways for such purposes and for matters incidental thereto.

[26th April 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Purposes of Supplies and Services (Transitional Powers) Act, 1945, to include defence and maintenance of world peace.

1.—(1) The purposes specified in subsection (1) of section one of the Supplies and Services (Transitional Powers) Act, 1945, shall be deemed to include, and always to have included, the purposes of—

- (a) providing or securing supplies and services required for the defence of any part of His Majesty's dominions or any territory under His Majesty's protection or in which he has jurisdiction, or for the maintenance or restoration of peace and security in any part of the world, or for any measures arising out of a breach or apprehended breach of peace in any part of the world; and
- (b) preventing supplies or services being disposed of in a manner prejudicial to the defence of any part of His Majesty's dominions or any such territory as aforesaid or to peace and security in any part of the world or to any such measures as aforesaid;

and any reference in any other provision of the said Act, or in any Defence Regulation having effect by virtue of the said Act, or in any order or other instrument made under any such Regulation, to the purposes specified in the said subsection (1) shall be construed accordingly.

(2) Nothing in the said Act or in this section shall be held to authorise the suppression or suspension of any newspaper, periodical, book or other publication.

Stopping up of highways for defence purposes.

2.—(1) The Minister of Transport, if he is satisfied that it is urgently necessary for any of the purposes specified in paragraph (a) of subsection (1) of the preceding section so to do, may by order provide for the stopping up or diversion of any highway passing through—

- (a) any land used or appropriated for use in His Majesty's service, or

(b) any land used or appropriated for the performance of any services designated by a Secretary of State or the Admiralty or the Minister of Supply, being services appearing to him or them to be essential for any of the purposes aforesaid, or

(c) any land adjoining or lying close to any such land as aforesaid.

(2) Not less than twenty-one days before making any such order, the Minister of Transport shall publish in at least one local newspaper circulating in the area in which the highway is situated and in the London Gazette a notice stating the effect of the order, and shall serve a copy of the notice on every local authority in whose area the highway is situated and on any water, hydraulic power, gas or electricity undertakers having any cables, mains, pipes or wires laid along, across or under the highway, and shall cause a copy thereof to be displayed in a prominent position at both ends of so much of the highway as is proposed to be stopped up or diverted.

A notice may be served under this subsection on any such undertakers by delivering it to their secretary or clerk at their registered or principal office, or sending it in a prepaid letter addressed to their secretary or clerk at that office.

(3) Where an order has been or is proposed to be made under subsection (1) of this section, the powers conferred by Regulations fifty and fifty-one of the Defence (General) Regulations, 1939, shall be available for the purpose of providing or improving an alternative route or carrying out any other work required in connection with the stopping up or diversion of the highway, and references in those Regulations to the purposes specified in subsection (1) of section one of the Supplies and Services (Transitional Powers) Act, 1945, shall, without prejudice to the preceding section, be construed as including references to that purpose.

(4) The power to make orders under subsection (1) of this section shall cease to be exercisable on the expiry of the Supplies and Services (Transitional Powers) Act, 1945:

Provided that any such order in force immediately before the expiry of that Act shall, unless previously revoked, continue in force for a further period of two years.

(5) At any time while an order under subsection (1) of this section is in force, the Minister of Transport may, if he is satisfied that it is necessary in the public interest so to do, by order provide for the permanent stopping up or diversion of the highway or any part thereof.

(6) Any order made under the last preceding subsection shall be made in accordance with the provisions of the Sixth Schedule to the Town and Country Planning Act, 1947, and subsections (2), (3), (4), (5), (6) and (9) of section forty-nine of that Act (which

contain powers to provide or improve other highways and to acquire land for that purpose) and the said Sixth Schedule to that Act shall have effect as if any reference to an order made under the said section forty-nine or under subsection (1) thereof included a reference to an order made under the last preceding subsection; and any other provisions of the said Act shall, so far as they are applicable in relation to an order made under the said section forty-nine, apply in like manner to an order made under the last preceding subsection.

(7) If, while an order under subsection (1) of this section is in force, notice is published in accordance with the said Sixth Schedule of a proposal to make an order under subsection (5) of this section for the permanent stopping up or diversion of the highway or any part thereof, the period for which the first-mentioned order is to continue in force (unless previously revoked) shall be extended, if it would otherwise come to an end at an earlier date—

- (a) until the order under subsection (5) becomes operative, or
- (b) if the proposal for making that order is abandoned, until six months after the abandonment.

As soon as any such proposal is abandoned, the Minister of Transport shall publish a notice to that effect in the London Gazette, and the date of the publication of the notice shall be deemed to be the date of the abandonment.

(8) Any person authorised by the Minister of Transport or a local authority may, on producing (if so required) some duly authenticated document showing his authority, enter on any land for the purpose of surveying it in connection with the provision or improvement of any highway under an order made or proposed to be made under subsection (5) of this section, and any person who wilfully obstructs a person acting in the exercise of his powers under this subsection shall be liable on summary conviction to a fine not exceeding twenty pounds:

Provided that no person shall in the exercise of such powers demand admission as of right to any land which is occupied, unless twenty-four hours' notice of the intended entry has been given to the occupier.

(9) In this section the expression "local authority" means the council of a county, a borough or an urban district, and the expression "highway" includes a part of a highway.

(10) In the application of this section to Scotland—

- (a) for the references to the Town and Country Planning Act, 1947, and to section forty-nine thereof there shall be substituted references to the Town and Country Planning (Scotland) Act, 1947, and to section forty-six thereof;

- (b) for the references to the London Gazette there shall be substituted references to the Edinburgh Gazette;
- (c) the expression "local authority" means a county council or a town council.

(11) This section, in its application to Northern Ireland, shall have effect subject to the following provisions:—

- (a) for the references to the Minister of Transport there shall be substituted references to the Secretary of State;
- (b) for the references to the London Gazette there shall be substituted references to the Belfast Gazette;
- (c) for subsection (6) there shall be substituted such provisions of a similar effect as may be made by Order in Council, and for the reference in subsection (7) to the Sixth Schedule to the Town and Country Planning Act, 1947, there shall be substituted a reference to the said provisions;
- (d) without prejudice to section sixty-three of the Government of Ireland Act, 1920, the Secretary of State may by order provide for authorising the Ministry of Commerce for Northern Ireland to exercise on his behalf, to such extent and subject to such conditions as may be specified in the order, any functions exercisable by the Secretary of State by virtue of this subsection, and, if the power to make orders under subsection (5) of this section is exercisable by the Ministry of Commerce, any order made in the exercise thereof shall be deemed to be a statutory rule to which the Rules Publication Act (Northern Ireland) 1925, applies.

(12) Any power to make an Order in Council or order under this section shall include a power to vary or revoke the Order in Council or order by a subsequent Order in Council or order, and the power to make orders under subsection (5) of this section shall, except where exercised by the Ministry of Commerce for Northern Ireland, be exercisable by statutory instrument.

3. Any expenses incurred by any Minister of the Crown or **Expenses.** Government department in consequence of the passing of this Act shall, except in so far as they fall to be otherwise defrayed under any other enactment, be defrayed out of moneys provided by Parliament, and any increase attributable to the passing of this Act in any sums falling to be paid under any other enactment out of moneys provided by Parliament shall be so paid.

4. His Majesty may by Order in Council provide for extending **Extension of** any of the provisions of this Act, with such exceptions, adaptations and modifications, if any, as may be specified in the Order, **Act to colonies and other territories.** to any of the countries or territories to which any provisions of

the Supplies and Services (Transitional Powers) Act, 1945, extend by virtue of subsection (4) of section five of that Act, and any such Order may be varied or revoked by a subsequent Order.

Short title. **5.** This Act may be cited as the Supplies and Services (Defence Purposes) Act, 1951.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
Supplies and Services (Transitional Powers) Act, 1945	9 & 10 Geo. 6. c. 10.
Town and Country Planning Act, 1947	10 & 11 Geo. 6. c. 51.
Town and Country Planning (Scotland) Act, 1947	10 & 11 Geo. 6. c. 53.

CHAPTER 26

Salmon and Freshwater Fisheries (Protection) (Scotland) Act, 1951

ARRANGEMENT OF SECTIONS

PART I

PROHIBITION OF CERTAIN METHODS OF TAKING AND DESTROYING FISH

Section

1. Prohibition of poaching.
2. Methods of fishing.
3. Illegal fishing by two or more persons acting together.
4. Prohibition against using explosive and other noxious substances for the destruction of fish.
5. Penalties for contraventions of ss. 3 and 4.
6. Taking of dead salmon or trout.
7. Illegal possession of salmon or trout.
8. Attempts to commit offences.
9. Saving for acts done for scientific, &c., purposes.

PART II

POWERS OF WATER BAILIFFS AND OTHERS

10. Powers of water bailiffs.
11. Powers of search.
12. Apprehension of offenders.

PART III

MISCELLANEOUS

13. The weekly close time.
14. Inquiry into working of weekly close time.
15. Power of Secretary of State to conduct inquiries and to obtain information.
16. Packages of salmon or trout to be marked.
17. Rates to be levied.